

File No.: EXP202304216

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant), after an incident on a flight with IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA (hereinafter, the respondent) which was delayed for more than 4 hours and during which her luggage was lost, contacted the company requesting the corresponding compensations.

The respondent replied, in summary, that regarding the compensation for the flight delay, the claimant "(...) filed a lawsuit. This lawsuit reached a payment agreement for the amount of XXXX euros.", and concerning the lost luggage, that they needed her to provide a series of documents and information. The claimant sent a new letter to Iberia stating that "(...) I have never filed a lawsuit of any kind, so if you have any record of such a thing, I request that you inform me of the Court and Procedure in which this lawsuit has been processed. I also request that you indicate where or how the XXXX euros you refer to as the amount of the agreement reached have been paid to me."

Iberia, in its response, indicates that they insist on the previous response since the claimant filed a lawsuit.

The claimant requested Iberia "(...) Since the company states that there is a court ruling ordering it to compensate me with an amount of €990, which has been deposited into an account of which I am the holder, and by virtue of my right to access all data existing in the records and databases of this company, I request that a copy of the ruling referred to be sent to me, or at least, that I be informed of its number, as well as the Court in which this procedure has supposedly been processed. I also request proof of the deposit into my supposed current account."

Iberia replied indicating that it had proceeded to pay the compensation for the lost luggage, attaching a copy of the proof of payment, and reiterating that, regarding the compensation for the delay, it had been managed through judicial means since the claimant had filed a lawsuit in the Courts of Madrid. On March 3, 2023, the claimant filed a complaint with this Agency for not having been properly attended to regarding her right of access.

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She provided a copy of the documentation that is part of the file linked to the complaint filed by the claimant with the OMIC of the City Council of León.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The legal representative of Iberia states that its actions comply with data protection regulations and denies that the rights of the claimant have been violated. It emphasizes that her request does not constitute an exercise of the right of access to her personal data but rather a request for judicial file documentation.

It is explained that the claimant, due to incidents caused by the delay of a flight in September 2020, requested compensation for the loss of her luggage and for the delay. The respondent made a deposit to the indicated account number.

However, a screenshot of the verbal lawsuit filed by the legal representative of the claimant against the respondent is provided. It is reported that an extrajudicial agreement was reached between the parties and the respondent made a payment to the legal representation of the claimant, LEGALSKY RECLAMACIONES AEREAS.

Despite the above, they reiterate that the claimant's request does not correspond to the objective of the right of access to personal data, but rather to access documentation of a judicial file; therefore, the respondent is not obliged to provide the claimant with the lawsuit filed or the judicial resolution, and she should direct her request to her legal representation.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on May 17, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days it could present the allegations it deemed appropriate, stating, in summary, that the claimant "(...) has never exercised a right of access in accordance with the current regulations on data protection, and on the other hand, the Company has acted diligently, respecting the rights of the data subject and also those of third parties affected, as well as the provisions set forth in Organic Law 6/1985, of July 1, on the Judiciary (hereinafter, the "LOPJ") and the Deontological Code adapted to the General Statute of the Spanish Bar, approved by Royal Decree 658/2001, of June 22 (hereinafter, the "Deontological Code")."

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They state that

"April 22, 2022: requests to be informed of the Court and Procedure number in which the claim has been processed and the account number where the claimed amount has been deposited.

August 23, 2022: again, the request made by the now claimant consists of being provided with a copy of the judgment, its number, the Court before which it has been processed, and the account number where the amounts claimed have been deposited through it.

(...) And at this point, it is necessary to emphasize that the Claimant's objective has, in no case, been to know what data is processed by the Company as a result of the filing of her own claim, but rather, the Complainant has only aimed to know the number of the Judgment and Court, as well as the account number where the amounts were deposited, but never to exercise her right of access to know what personal data was included in the judicial claim.

Furthermore, the responding party states "(...) the deviation from the criterion maintained by the AEPD up to the date of response to the information request," mentioning some resolutions issued by this Agency (R/01876/2012, of July 17, 2012, R/00151/2021).

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten working days, she may submit any allegations she deems appropriate, reiterating once again that she has not filed, either directly or through any legal representation, any judicial claim against Iberia.

"Therefore, regardless of whether there may be some nuance, what I wanted was to have documented proof of who was acting on my behalf, and with what authorization, since I do not recognize any signature, as Iberia has ultimately done in its response to the AEPD."

FIFTH: After granting a hearing to Iberia, it states the "inadequate channel for exercising actions in relation to a possible crime typified in Article 401 of Organic Law 10/1995, of November 23, of the Penal Code in relation to Article 395 of the same text."

"Considering what the opposing party has stated in her allegations, it is indisputable that the Complainant errs when attributing any type of responsibility to my represented party in relation to a possible identity theft as a result of the lack of recognition of the signature appearing in the claim document submitted in the reference file, a fact that would imply the possible commission of a crime of document forgery typified in Article 395 of Organic Law 10/1995, of November 23, of the Penal Code (hereinafter, the "Penal Code"). (...)"

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“The opposing party states that, “regardless of whether there may be some nuance, what I wanted was to have documented proof of who was acting on my behalf, and with what authorization, since I do not recognize any signature.”

“Well, in the first instance, through such statements, it can be verified how the complainant modifies her initial requests, which are summarized again below and where it is reflected that she never referred to the document that would allow for the accreditation of third-party representation nor recognition of signature forgery, since it was not until the submission of the allegations against the resolution that admitted the claim for processing that she was provided with the screenshot that proved that the Complainant had signed the claim document.

(...) Given all of the above, it can only be interpreted that, through these changing statements, the sole intention is to obtain an unfavorable ruling from this supervisory authority against Iberia, so that subsequently, Ms. A.A.A. may resort to civil proceedings due to the powers derived from the application of Article 82 of the GDPR.

Despite the contradictions in which the opposing party incurs, as has been reiterated, just as the AEPD has recognized in its resolution, Iberia “is not obliged to provide the claimant with a copy of the claim filed,” a document to which, in any case, the accreditation of representation would be attached that would allow “to document who was acting on my behalf, and with what authorization, since I do not recognize any signature.”

Therefore, it can only be confirmed that Ms. A.A.A. continues to act erroneously by approaching my represented party for the accreditation of third-party authorization that would allow her to act in her representation, since, in this regard, it is the duty and obligation of the Court and, in this case, of the Justice Administration Lawyer to verify these matters: (...)

In light of this, Ms. A.A.A. must approach the Justice Administration to know any circumstance that affects the accreditation of her procedural representation, as established by the LOPJ and, more specifically, in Article 140 of the Law of January 7, on Civil Procedure.”

Additionally, it refers to the serious harm caused to Iberia in the event that it is confirmed that there has been an identity theft.

LEGAL GROUNDS

I

Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as

appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with such authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on May 17, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

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Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR, as well as in Articles 13 to 18 of the LOPDGDD.

Regarding the right of access of data subjects to obtain personal data "concerning them" from the data controller, Articles 12 and 15 of the GDPR, as well as Articles 12 and 13 of the LOPDGDD, are particularly applicable, all of which must be interpreted within the framework established in Recitals 59 to 64 of the GDPR.

Thus, the main content of the right and its scope or content is established in Article 15 of the GDPR, which provides as follows:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or

restriction of processing of personal data concerning the data subject, or to object to such processing;
f) the right to lodge a complaint with a supervisory authority;
g) when the personal data have not been obtained from the data subject, any available information as to their source;
h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in those cases, information

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significant regarding the applied logic, as well as the importance and anticipated consequences of such processing for the data subject.

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 related to the transfer.

3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee based on administrative costs for any additional copies requested by the data subject. When the data subject submits the request electronically, and unless they request that it be provided in another way, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. For its part, Article 13 of the LOPDGDD establishes certain guidelines for considering this right to be fulfilled by the data controller in specific cases, specifying the following:

“1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679. When the controller processes a large amount of data relating to the affected party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the affected party with a remote, direct, and secure access system to the personal data that ensures, on a permanent basis, access to its entirety. For these purposes, the communication by the controller to the affected party regarding how they can access such a system shall suffice to consider the request for the exercise of the right as fulfilled.

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However, the interested party may request from the responsible party the information referred to in the terms provided in Article 15.1 of Regulation (EU) 2016/679 that was not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access may be considered repetitive if exercised more than once within a period of six months, unless

there is a legitimate reason for it.

4. When the affected party chooses a means other than the one offered that incurs disproportionate costs, the request will be considered excessive, and the affected party will bear the excess costs that their choice entails. In this case, only the satisfaction of the right of access without undue delay will be required from the data controller.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

IV

Conclusion

The Rights Procedure is initiated as a consequence of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the aspects related to the same will be analyzed and evaluated, excluding the rest of the issues raised (possible compensation for delays and loss of luggage, and possible impersonation).

Furthermore, and taking into account the provisions of the previous paragraph, the claim must be submitted when, after exercising the corresponding right, no response is received or the response received is not satisfactory. Therefore, the new claims that are included during the processing cannot be evaluated.

In this case, from the documentation provided by the parties, it has been established that the claiming party requested the responding party to send them a copy of the judgment referred to, or at least to inform them of its number, as well as the Court in which the procedure has supposedly taken place. They also requested proof of the deposit in their supposed current account.

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In this regard, the provisions of the European Data Protection Board (hereinafter, EDPB) in Guidelines 1/2022, adopted on March 28, 2023, regarding the Application Guide for Article 15 of the GDPR, on the Right of Access of the Data Subject, should be applied, which indicates that

“d). Is the request included within the scope of Article 15?

50.

It should be noted that the GDPR does not introduce any formal requirements for individuals requesting access to data. To make an access request, it is sufficient for the requesting individuals to specify that they wish to know what personal data concerning them is processed by the data controller. Therefore, the data controller cannot refuse to provide the data by referring to the lack of indication of the legal basis for the request, especially the lack of a specific reference to the right of access or the GDPR.

For example, to make a request, it would be enough for the requesting individual to indicate that:

- they wish to obtain access to the personal data concerning them;
- they are exercising their right of access; or
- they wish to know the information concerning them that is processed by the controller.

It should be noted that applicants may not be familiar with the complexities of the GDPR and that it is advisable to be lenient with individuals exercising their right of access, particularly when it is exercised

by minors. As previously indicated, in case of doubt, it is recommended that the data controller ask the data subject to specify the object of the request.

e) Do the data subjects wish to access all or part of the information processed about them?

51.

Furthermore, the data controller must assess whether the requests made by the requesting individuals refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish to have access to the source or origin of the specified personal data or the specified storage period. In such cases, the data controller may limit their response to the specific information requested.

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3.1.2 Form of the request

52.

As noted above, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, there are, in principle, no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the data controller."

Furthermore, the Judgment of the Court of Justice (Third Chamber) of May 7, 2009 [CJEU Rijkeboer 7.5.2009 — Case C-553/07] states that

"51 The aforementioned right of access is essential for the data subject to exercise the rights provided for in Article 12, letters b) and c), of the Directive, namely, where applicable, when the processing does not comply with its provisions, to obtain from the data controller the rectification, erasure, or blocking of the data [letter b)], or to notify third parties to whom the data has been communicated of any rectification, erasure, or blocking carried out, if this is not impossible or does not involve a disproportionate effort [letter c)].

52 The right of access is also a necessary condition for the data subject to exercise the right to object to the processing of their personal data, as provided for in Article 14 of the Directive, as it is for the right to seek compensation for damages suffered, as provided for in Articles 22 and 23 thereof."

On the other hand, regarding the right to obtain a copy, the Judgment of the Court of Justice of the European Union (First Chamber) of May 4, 2023 states:

"1) Article 15, paragraph 3, first sentence, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation),

must be interpreted as meaning that

the right to obtain from the data controller a copy of the personal data being processed implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized that the rights and freedoms of third parties must be taken into account in this regard.

2) Article 15, paragraph 3, third sentence, of Regulation 2016/679

must be interpreted as meaning that

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The concept of "information" referred to exclusively pertains to the personal data for which the data controller must provide a copy in accordance with the first sentence of that section.

Therefore, according to the interpretation of the right of access made by the Court of Justice of the European Union, as well as what is established in the aforementioned Guidelines 1/2022, the claiming party has exercised the right of access regarding the personal data that concerns them, and the responding party must provide the claiming party with their right of access under the terms provided in the GDPR.

It is then appropriate to delve into the substance of the matter and analyze whether the grounds for dismissal put forth by the responding party were justified.

In this regard, it is pertinent to apply the provisions set forth in the previously cited Guidelines 1/2022, whose point 4.2 specifies the scope of the personal data encompassed by the right of access, making specific mention of the data that concerns the data subject, warning against the danger of making a "too restrictive" interpretation to automatically deny access.

These Guidelines establish the following (the emphasis is ours):

"4.2 The personal data referred to by the right of access

In accordance with Article 15, paragraph 1 of the GDPR, 'the data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information'" (the emphasis is ours).

Several elements can be inferred from paragraph 1 of Article 15 of the GDPR. The paragraph expressly refers to "the personal data concerning them" (4.2.1), which "is being processed" (4.2.2) by the data controller:

4.2.1. "personal data concerning them"

The right of access can only be exercised with respect to the personal data related to the data subject requesting access or, where applicable, by an authorized person or representative (see section 3.4).

There are also situations where the data does not have a link to the person exercising the right of access, but rather to another person. However, the data subject only has the right to personal data relating to themselves, excluding data that exclusively concerns another person.

However, the classification of data as personal data relating to the data subject does not depend on whether such personal data also refers to another person. Therefore, it is possible for personal data to refer to more than one person at the same time. This does not automatically mean that access is granted to personal data also related to another person, as the data controller must comply with Article 15, paragraph 4, of the GDPR.

The words "personal data concerning them" should not be interpreted in a "too restrictive" manner by data controllers, as has already been indicated.

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declared the Article 29 Working Group regarding the right to data portability."

Consequently, according to the EDPB, the highest European authority in this matter, the right of access under Article 15 of the GDPR goes beyond merely requesting one's own personal data—limited to the data subject—and extends to those that "concern them." An interested party may request information about all personal data that the data controller holds in relation to their identity, including data collected in a supposed identity theft.

Furthermore, the Guidelines 1/2022 expressly mention that the right to know about operations carried out in cases of accounts opened due to “identity theft” can be admitted (the emphasis is ours):

“On the other hand, there are situations where the link between the data and several individuals may seem blurred for the controller, as in the case of identity theft. In the event of identity theft, one person acts fraudulently on behalf of another person. In this context, it is important to remember that the victim must receive information about all personal data that the data controller holds in relation to their identity, including data collected based on the actions of the fraudster. In other words, even after the data controller becomes aware of the identity theft, the personal data associated or related to the identity of the victim constitutes personal data of the interested party.

In summary, in the present case, the claimant has the right to be provided with their right of access concerning the request made to the respondent: “That a copy of the judgment referred to be sent to me, or at least, that I be informed of its number, as well as the Court in which this procedure has supposedly taken place. I also request proof of the deposit in my supposed current account.”

The main argument put forth by the respondent for not providing the requested access is invalid, as the right of access to personal data affecting the claimant in cases of alleged identity theft, such as the present one, does not require prior judicial authorization or prior police request.

Furthermore, it is the respondent itself that indicates it is processing the aforementioned data concerning the claimant, failing to understand, if as they say it corresponds to the claimant, why it is not provided to them in the terms stipulated by the GDPR.

Regarding the statements made by the respondent about “(...) the deviation from the criteria maintained by the AEPD up to the date of response to the information request,” mentioning some resolutions issued by this Agency (R/01876/2012, of July 17, 2012, R/00151/2021), it should be noted that:

- Regarding the first of these, R/01876/2012, it is the resolution of procedure TD/01273/2012, in which the complaint filed was inadmissible, in which processing the Royal Decree was applicable.

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1720/2007, of December 21, which approves the Regulation for the development of Organic Law 15/1999, of December 13, on the protection of personal data, currently repealed, which specified in its article 27.3 RGLOPD that “3. The right of access is independent of that granted to the affected parties by special laws and in particular Law 30/1992, of November 26, on the Legal Regime of Public Administrations and the Common Administrative Procedure.”

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And regarding the second, R/00151/2021, it is the resolution of procedure TD/00004/2021 in which the claim filed is upheld, for formal reasons, indicating that access to a copy of specific documents is not included within the access regulated by data protection legislation. However, as previously indicated, it is necessary to take into account the STJUE of May 4, 2023, which states that “(...) the right of access must be interpreted in the sense that the right to obtain from the data controller a copy of the personal data subject to processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, that contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the need to take into account, in this regard, the rights and freedoms of third parties.”

Consequently, it is appropriate to uphold the present claim for rights.

It cannot be accepted that the response that should be given can be expressed merely as part of an administrative procedure, such as the submission of allegations in the present procedure, initiated precisely for failing to adequately address the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the

event that there are no data in the files or even in those cases where it does not meet the established requirements, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claiming party informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that originated the present procedure.

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Regarding the alleged identity theft or fraud that may have been committed, the parties have the option to file the relevant complaints with the appropriate authorities with the competence to analyze them. In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of article 15 of the GDPR have been infringed and to urge IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA with NIF A85850394, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of article 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

1381-090823
Mar España Martí
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